MINUTES OF THE CLARE COUNTY BOARD OF COMMISSIONERS

Approved 9-18-2024

225 W. Main St.
Harrison, Michigan 48625

Unapproved minutes
August 21, 2024

Meeting was called to order at 9:00 a.m.

Pledge of Allegiance to the Flag of the United States of America

District 1 Marlene Housler, District 2 Dale Majewski, District 4 Jeff Haskell, District 5 David Hoefling, District 6 Jack Kleinhardt, District 7 Gabe Ambrozaitis, District 8 George Gilmore and District 9 Rick Fancon

COMMISSIONERS ABSENT

District 3 Samantha Pitchford

OTHERS PRESENT

Clerk & Register of Deeds Lori Mott, Administrator Lori Phelps, members of the public and zoom participants

APPROVAL OF AGENDA

It was moved by Commissioner Majewski, seconded by Commissioner Gilmore to approve the agenda with additions, **motion carried**

*Additions – Under Approval of the Minutes add approval of closed session minutes of August 7, 2024 and under Finance add a Clare County Land Bank motion.

APPROVAL OF MINUTES

It was moved by Commissioner Majewski, seconded by Commissioner Fancon to approve the Board of Commissioners Minutes of July 7, 2024, the Committee of the Whole Minutes of August 7, 2024 and the Closed Session Minutes of August 7, 2024, **motion carried**.

GENERAL PUBLIC COMMENT

None

COMMUNICATIONS LIST

No discussion

ADMINISTRATOR'S REPORT

No report

PUBLIC HEARINGS/SPECIAL PRESENTATIONS

1. Eric Karbowski, District 6 Director MSU Extension
   Director Karbowski gave the 2023 Fiscal Year Annual Report and introduced the two new employees Danielle Schrock and Jennifer Letterhart.

   Director Karbowski presented the Fiscal Year 2025 Memorandum of Understanding (MOA) that is consistent with prior years MOA's with an increase of 3% which is within the collected millage funds. Administrator Phelps indicated the motion to accept the MOA will be addressed later in the meeting.

HEALTH AND HUMAN SERVICES

1. Housing Needs Assessment

   It was moved by Commissioner Housler, seconded by Commissioner Hoefling to approve a $5,000 contribution to the East Michigan Council of Governments toward a Housing Needs Assessment for Clare County to be paid out of the Community Development Fund, roll call vote revealed:

   Yeas: (8) being Commissioners Housler, Hoefling, Gilmore, Kleinhardt, Ambrozaitis, Fancon, Majewski and Haskell
   Nays: (0)
   Absent: (1) being Commissioner Pitchford
   Motion carried

PHYSICAL RESOURCES AND ECONOMIC DEVELOPMENT

1. Materials Management
   It was moved by Commissioner Hoefling, seconded by Commissioner Housler to appoint Lori Phelps as the Designated Planning Agent for Clare County and Rick Fancon as the County Elected Official to the Materials Management Planning Committee Policy Board, **motion carried**.

2. Agreement for Extension Services
   It was moved by Commissioner Majewski, seconded by Commissioner Gilmore to approve the continued Agreement for Extension Services with MSU Extension in the amount of $154,302.00, roll call vote revealed:

   Yeas: (8) being Commissioners Majewski, Gilmore, Housler, Hoefling, Kleinhardt, Ambrozaitis, Fancon and Haskell
   Nays: (0)
   Absent: (1) being Commissioner Pitchford
   Motion carried

FINANCE AND ADMINISTRATION

1. Statutory Finance Committee
   It was moved by Commissioner Ambrozaitis, seconded by Commissioner Hoefling to approve Statutory Finance Committee meeting minutes of July 22, 2024 in the amount of $263,107.53 and minutes of August 5, 2024 in the amount of $89,992.82, roll call vote revealed:

   Yeas: (8) being Commissioners Ambrozaitis, Hoefling, Majewski, Gilmore, Fancon, Kleinhardt, Housler and Haskell
   Nays: (0)
   Absent: (1) being Commissioner Pitchford
   Motion carried

2. Monthly Expenditures
   It was moved by Commissioner Gilmore, seconded by Commissioner Ambrozaitis to approve the expenditures for the month of July, 2024 in the amount of $2,898,762.25 with the General Fund expenditures totaling $1,681,514.24, roll call vote revealed:

   Yeas: (8) being Commissioners Gilmore, Ambrozaitis, Kleinhardt, Hoefling, Housler, Majewski, Fancon and Haskell
   Nays: (0)
   Absent: (1) being Commissioner Pitchford
   Motion carried

FINANCE AND ADMINISTRATION – continued

3. Budget Adjustments
   It was moved by Commissioner Kleinhardt, seconded by Commissioner Gilmore to approve budget adjustments 24-123, 24-134, 24-136, 24-137, 24-139, 24-140 in the amounts of $1,063,489.07, $126,471.18, $91,102.00, $86,458.13, $102,928.29, and $62,254.00 respectively, roll call vote revealed:

   Yeas: (8) being Commissioners Kleinhardt, Gilmore, Majewski, Housler, Hoefling, Ambrozaitis, Fancon and Haskell
   Nays: (0)
   Absent: (1) being Commissioner Pitchford
   Motion carried

4. Health Insurance

   a. It was moved by Commissioner Fancon, seconded by Commissioner Hoefling to opt out of Public Act 152, Chairman Haskell asked for discussion, Commissioner Gilmore thought that combining jobs through attrition in an effort to fully insure the rest of the employees is not a good idea and indicated that people doing two jobs and being paid for one job will not be happy for any length of time. Commissioner Gilmore suggested having all of the employees pay a little more of the costs and keep the existing positions. Commissioner Kleinhardt expressed concern regarding the increasing cost of providing health insurance. Administrator Phelps explained again, as she has in previous meetings, that if the Commissioners opted out of Public Act 152 and voted to adopt the Priority Health Insurance Plan the costs to the employees would remain the same as the current year, the coverage for the employees would remain the same as the current year and the County would see a cost savings in the amount of $68,000.00, which, as discussed previously, that savings would be passed onto the employees. Commissioner Ambrozaitis asked Administrator Phelps to confirm that if this motion to opt out of Public Act 152 does not pass the employees would see a significant increase in their health insurance costs. Administrator Phelps confirmed that the employees would see a significant increase in their cost for health insurance and the County would see a significant savings. Administrator Phelps also confirmed that the employees recognize and understand that the health insurance is a good benefit and appreciate it. Chairman Haskell confirmed that all the unions, during negotiations, took the benefit package plan into consideration when they accepted a lower wage. All union negotiations are complete and ready for acceptance pending this motion passing and if this motion does not pass the negotiations will fall apart.

      Administrator Phelps formally recommended the Board of Commissioners opt out of PA 152 and pass the motion to accept the Priority Health Insurance Plan.

      Chairman Haskell recommended forming a committee to research and discuss changes to the health insurance and address it in the next budget year instead of hitting the employees in the pocketbook today by increasing their health insurance costs in addition to the high inflation they are already combating. Roll call vote revealed:

      Yeas: (3) being Commissioners Hoefling, Fancon and Haskell
      Nays: (3) being Commissioners Housler, Gilmore and Kleinhardt
      Abstained (2) being Commissioners Majewski and Ambrozaitis both gave the reason of direct financial benefit through spouses that work for Clare County
      Absent: (1) being Commissioner Pitchford
      Motion failed

FINANCE AND ADMINISTRATION – continued

It was agreed to schedule a special meeting on Monday, August 26, 2024 at 1:00 p.m. to vote on the health insurance. Administrator Phelps will have to see how this decision will affect the union negotiations that were set to be settled based on opting out of PA 152 and adopting the Priority Health Insurance Plan and the substantial increase in costs to employees by not opting out of PA 152.

5. Clare County Land Bank
   It was moved by Commissioner Fancon, seconded by Commissioner Hoefling to approve Vickie Corlew, City of Clare representative to the Clare County Land Board, **motion carried**.

6. Clerk Discussion – Ballot Programming
   Clerk/Register of Deeds/Abstractor Lori Mott presented to the Board of Commissioners a request for compensation for programming the ballot for elections. Clerk Mott described the additional time commitment that is put into programming and the additional election duties that have been placed on the County Clerk's office over the past several years. Clerk Mott presented two options:

   a. A salary increase of $13,000.00 for the County Clerk/Register of Deeds/Abstractor and $7,000.00 for the Chief Deputy County Clerk/Register of Deeds/Abstractor.

   b. A stipend for programming of $9,000 for the County Clerk/Register of Deeds/Abstractor and $5,000.00 for the Chief Deputy County Clerk/Register of Deeds/Abstractor. A stipend would only be paid when there is an election and ballot programming is necessary.

   Clerk Mott explained the difficulty she is having in keeping the election position filled in her office explaining the extreme stress surrounding elections. Clerk Mott suggested not filling the election position and transferring those funds to pay for an increase for the County Clerk/Register of Deeds/Abstractor, County Prosecuting Attorney and County Treasurer. Clerk Mott went on to confirm that the three women, through Prosecutor Ambrozaitis, asked for an increase in wages a few years prior when the County Sheriff and Undersheriff both received increases, but that request was never granted.

CLERK/REGISTER OF DEEDS REPORT

Clerk and Register of Deeds Lori Mott informed the Commissioners that there have been two recounts filed for the County Commissioner District 7 race and Hayes Township Trustee race. Clerk and Register of Deeds Mott also gave election law changes and updates, privacy shielding law updates, jury selection law updates and notary law updates that are all currently taking place. Clerk and Register of Deeds Mott explained the proactive actions being taken in the Register of Deeds office in preparation of the privacy shielding law changes.

Clerk and Register of Deeds Mott expressed her great sadness and disappointment in the Board of Commissioners for not opting out of PA 152 which results in a huge increase in costs to the employees. She confirmed how hard the employees of Clare County work and the health insurance was one benefit that kept employees working here. Clerk and Register of Deeds Mott encouraged the County Commissioners to talk with the employees and hear how their decision on health insurance will greatly affect the lives of the employees.

TREASURER'S REPORT

Treasurer Jenny Beemer-Fritzinger provided all the statutory reports to the Commissioners and a revenue trend sheet and explained the trends. Treasurer Beemer-Fritzinger also provided a library report showing all penal fine money that has been disbursed for local libraries, which total approximately $144,000.00 and the annual Brownfield Report. She is working on a Foreclosure Report and will learn more about the Supreme Court ruling regarding foreclosures at an upcoming conference. Treasurer Beemer-Fritzinger also confirmed she has been preparing for the worst-case scenario regarding the Foreclosure Supreme Court ruling and has prepared Clare County for any possible implications.

CHAIRMAN'S REPORT

Chairman Jeff Haskell reminded everyone of the upcoming Harrison Street Fair.

VICE CHAIRMAN'S REPORT

Vice Chairman Dale Majewski talked about the passing of Lincoln Township Supervisor Dennis Zimmerman.

COMMISSIONER'S REPORT

Commissioner Housler offered her condolences to Lincoln Township and reminded everyone about the upcoming Lake Days in Garfield Township.

Commissioner Hoefling offered his condolences to Lincoln Township and gave an update on the townships he represents and committees he represents.

Commissioner Ambrozaitis reminded everyone of the upcoming Airport Committee Meeting is on August 27, 2024 at 4:00 p.m. in the County Commissioner Room.

Commissioner Gilmore expressed concern from Grant Township Supervisor regarding using Dominion voting equipment and if new equipment is being purchased other vendors should be considered.

Commissioner Kleinhardt commented on Supervisor Zimmerman's knowledge of townships.

Commissioner Fancon commented how fragile the economy currently is and to remember that when making decisions.

STATE OF THE COUNTY BUDGET

No discussion

PUBLIC COMMENT

Clerk Register of Deeds Mott confirmed that the new election night reporting software worked beautifully and resulted in a significant reduction in phone calls to the County Clerk's office on Election Night.

A citizen commented that he could not hear what was being said by the commissioners and asked for a resolution to the problem of acoustics that has been brought up to the Board of Commissioners multiple times. The Chairman and Administrator both confirmed it is being worked on.

UNFINISHED BUSINESS

None

NEW BUSINESS

None

Meeting Adjourned at 10:15 a.m.

Lori Mott, Clerk
Clare County Board of Commissioners

Jeff Haskell, Chairman
Clare County Board of Commissioners